

26PR00625 Conservatorship of Jeffrey Pottorff

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Appointment of Temporary Conservator

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Conservatorship of Jeffrey Pottorff

26PR00625

Appointment of Temporary Conservator

Tentative Ruling: APPEARANCES REQUIRED. This case has a challenging procedural history. A petition to establish a conservatorship was first filed on May 20, 2026, along with a petition for an emergency temporary conservatorship. On the same day, the Court issued a two-page ruling pointing out numerous deficiencies in the emergency temporary conservatorship petition, but setting it for hearing rather than denying it based on the apparent need. Prior to the May 29, 2026, hearing on the temporary conservatorship petition, it was withdrawn. The original petition for appointment of a conservator remained set for hearing on July 24, 2026. On June 3, 2026, almost two months before the hearing, the Court Investigator issued a memorandum noting a number of procedural issues that needed to be addressed before the Court Investigator could perform an investigation and before the Court could reach the merits of the petition. Despite weeks to address these issues none were addressed. On July 24, 2026, the Court therefore continued the hearing to September 4, 2026, and again directed the petitioner to address the procedural issues noted, including obtaining and serving a new citation, which is fundamental to establish the Court's jurisdiction over the proposed conservatee. The Court notes a "stipulated continuance" was also filed by petitioner's counsel and the proposed conservatee's counsel, which has a future date of September 18, 2026 on it. No action on this stipulation was taken (as it was processed just prior to the July 24, 2026 hearing date and after the tentative rulings had been posted) and no hearing has been set for September 18, 2026. Rather than addressing the defects in the petitions, it would appear counsel instead created yet another emergency application for temporary conservatorship filed on August 5, 2026. On August 11, 2026, a declaration in support of the new emergency petition was filed. In light of the information provided in that declaration, the Court requested the office of the Court Investigator make an unannounced visit with the proposed temporary conservatee, which occurred. The information provided is generally consistent with the matters addressed in the most recent emergency petition and has given this Court a better understanding of the serious concerns of the family. However, the Court has outlined the procedural history to highlight the fact that a number of decisions have been made up to this point that prevent the Court from being able to both consider the relief requested by petitioner and, as importantly, protect the rights of the proposed temporary conservatee. There is still no served citation, the missing attachments to the capacity declaration have not been provided, and none of the other deficiencies previously pointed out by the Court and the Court Investigator have been addressed. Had these issues been addressed, the Court could have proceeded to the merits in July. It is unclear why they were not and why time was instead spent on yet a new petition. This is significant because the proposed conservatee also has rights, including the right to object, and the right to a jury trial, before a conservatorship is imposed upon him over any objection. The petitioner instead has procedurally postured this case to ask the Court to grant some of the most restrictive powers available, including placement in a locked facility, and to do so immediately, before any of the due process protections built into the process have been invoked. Also, the change of residence of a temporary conservatee is strictly regulated by Probate Code section § 2253, which states in part:

(a) If a temporary conservator of the person proposes to fix the residence of the conservatee at a place other than that where the conservatee resided before the commencement of the proceedings, that power shall be requested of the court in writing, unless the change of residence is required of the conservatee by a prior court order. The request shall be filed with the petition for temporary conservatorship or, if a temporary conservatorship has already been established, separately. The

request shall specify in detail the place to which the temporary conservator proposes to move the conservatee, the precise reasons that the petitioner or temporary conservator has concluded that the conservatee will suffer irreparable harm if the change of residence is not permitted, and why no means less restrictive of the conservatee's liberty will suffice to prevent that harm.

(b) The court investigator shall do all of the following:

(1) Interview the conservatee personally.

(2) Inform the conservatee of the nature, purpose, and effect of the request made under subdivision (a), and of the right of the conservatee to oppose the request, attend the hearing, be represented by legal counsel, and to have legal counsel appointed by the court if not otherwise represented by legal counsel.

(3) Determine whether the conservatee is unable to attend the hearing because of medical inability and, if able to attend, whether the conservatee is willing to attend the hearing.

(4) Determine whether the conservatee wishes to oppose the request.

(5) Determine whether the conservatee wishes to be represented by legal counsel at the hearing and, if so, whether the conservatee has retained legal counsel and, if not, whether the conservatee plans to retain legal counsel.

(6) Determine, by considering, among other things, the medical information received pursuant to paragraph (7), whether the proposed change of place of residence is required to prevent irreparable harm to the conservatee and whether no means less restrictive of the conservatee's liberty will suffice to prevent that harm.

(7) Gather and review relevant medical reports regarding the proposed conservatee from the proposed conservatee's primary care physician and other relevant mental and physical health care providers.

(8) Report to the court in writing, at least two days before the hearing, concerning all of the foregoing, including the conservatee's express communications concerning representation by legal counsel and whether the conservatee is not willing to attend the hearing and does not wish to oppose the request.

(c) Within seven days of the date of filing of a temporary conservator's request to remove the conservatee from the conservatee's previous place of residence, the court shall hold a hearing on the request.

(d) The conservatee shall be present at the hearing except in the following cases:

(1) Where the conservatee is unable to attend the hearing by reason of medical inability. Emotional or psychological instability is not good cause for the absence of the conservatee from the hearing unless, by reason of that instability, attendance at the hearing is likely to cause serious and immediate physiological damage to the conservatee.

(2) Where the court investigator has reported to the court that the conservatee has expressly communicated that the conservatee is not willing to attend the hearing and does not wish to oppose the request, and the court makes an order that the conservatee need not attend the hearing.

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(f) At the hearing, the conservatee has the right to be represented by counsel and the right to confront and cross-examine any witness presented by, or on behalf of, the temporary conservator and to present evidence on their own behalf.

(g) The court may approve the request to remove the conservatee from the previous place of residence only if the court finds (1) that change of residence is required to prevent irreparable harm to the conservatee and (2) that no means less restrictive of the conservatee's liberty will suffice to prevent that harm. If an order is made authorizing the temporary conservator to remove the conservatee from the previous place of residence, the order shall specify the specific place wherein the temporary conservator is authorized to place the conservatee. The temporary conservator may not be authorized to remove the conservatee from this state unless it is additionally shown that the removal is required to permit the performance of specified nonpsychiatric medical treatment, consented to by the conservatee, which is essential to the conservatee's physical survival. A temporary conservator who willfully removes a temporary conservatee from this state without authorization of the court is guilty of a felony.

(h) Subject to subdivision (e) of Section 2252, the court shall also order the temporary conservator to take all reasonable steps to preserve the status quo concerning the conservatee's previous place of residence.

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Based on the information provided to the Court from the Court Investigator, it does appear the proposed temporary conservatee objects and is unwilling to attend the hearing. The Court has not been provided with any medical records. The Court does note that the capacity declaration indicates that some causes of the proposed temporary conservatee's condition may be reversible. Yet there is no information before the Court about whether such medical treatment has been attempted. There is also no indication before the Court that there are present medical orders that would allow a facility placement to administer prescribed medications to address behavioral disturbances, without which other residents, as well as the proposed temporary conservatee, could be endangered. It is also unclear whether a medical professional has addressed the use of such medications, and if properly prescribed and administered, whether a change in placement would still likely be necessary.

The Court considered simply denying the petition but has instead required appearances to discuss the issues, which the Court accepts are substantial. However, to manage the expectation of the parties, even if a temporary conservatorship were to be granted, it would not include an order to change residence. On that issue, the Court would at most set this matter for an evidentiary hearing within the next seven days in compliance with the law. At such a hearing, petitioner would have the burden of proof as outlined above. There is no other legal path forward as petitioner and her counsel have presented this matter.